

NOV 12 1996



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8126
(FOURTH REVISION)

EXPIRATION DATE: August 31, 1998

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Compagnie Des Containers Reservoirs
Paris, France
(U.S. Agent: ERMEWA, Inc., Houston, TX)
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain Division 2.1 materials in non-DOT specification portable tanks. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Section 173.315(a) in that non-DOT specification packaging is authorized; 174.63(a), 178.245-1 in that packagings are not ASME Code "U" stamped.
5. BASIS: This exemption is based on the application of ERMEWA, Inc., on behalf of Compagnie Des Containers Reservoirs dated April 12, 1996, and supplemental information dated September 19 and September 20, 1996, submitted in accordance with 49 CFR 107.105.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Ethyl Chloride	2.1	UN1037	N/A
Butadienes, inhibited	2.1	UN1010	N/A
Butane	2.1	UN1011	N/A
Isobutane	2.1	UN1969	N/A
Isobutylene	2.1	UN1055	N/A
Dimethylamine, anhydrous	2.1	UN1032	N/A
Trimethylamine, anhydrous	2.1	UN1083	N/A

7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. PACKAGING - Packagings prescribed are non-DOT specification portable tanks designed and constructed in accordance with Fauvet-Girel drawing No. Co-165755 Rev. O, dated December 6, 1978, and calculations on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA), and in compliance with the following:

(1) Code--Complies with ASME Section VIII Div. 1 but not certified, and IMCO type V specification. Tank is enclosed in an ISO type 1C frame.

(2) Number of Compartments - One.

(3) Tank Size (inches) -
(outside dia.) X (length) X (thickness)
94.5 235.8 .328

Head Thickness - .359.

(4) Water Capacity (U.S. Gallons) - 6,524.

(5) Material - Carbon steel A52FP2 with 73,970 psi tensile strength and 23% elongation. Stress relieved after welding.

(6) Design Pressure (PSIG) - 116.

Note: Design pressure means "maximum allowable working pressure (MAWP)" as used in the ASME Code.

(7) Test Pressure, Minimum (PSIG) - 174.

(8) Opening - One 18 inch manhole, lower part of one head, 2 bottom discharge openings.

(9) Tank surface area (square feet) -520.

(10) Safety Relief Devices - Each tank must be equipped with 2 spring loaded safety valves in series with and out board of one rupture disc all set to relieve at not less than design pressure and not more than 110 per cent of tank design pressure. Total venting capacity is 616,200 SCFH.

Each safety relief device must be installed to have direct communication with the vapor space of the tank at the midlength of the top centerline.

(11) G-Loadings: Vertical down 2; Vertical up 1;
Longitudinal 2; and Transverse 1.

(12) Maximum Gross Weight - 52,910 pounds.

- b. TESTING - Each tank must be (i) visually inspected prior to each trip to insure that it has not been damaged on the previous trip; (ii) visually inspected at least once in every 2-1/2 years in accordance with the provisions of 49 CFR 173.32b(b); and pressure tested at least once every 5 years at one and one-half times the design pressure in accordance with the provisions of 49 CFR 173.32(e) for DOT 51 specification portable tanks.
- c. OPERATIONAL CONTROLS - The tank must be filled so as not to be liquid full at 130°F. In addition the filling density requirements of 49 CFR 173.315 must be met.

8. SPECIAL PROVISIONS:

- a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.
- b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.
- c. MARKING - Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 8126".
- d. Hydrostatic test certificates for each tank must be maintained by the owner or manufacturer at its principal business office and be made available to any representatives of the DOT upon request.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel.

10. MODAL REQUIREMENTS:

- a. A copy of this exemption must be carried aboard each cargo vessel, and motor vehicle used to transport packages covered by this exemption.

b. Portable tanks may not be transported in trailer on flatcar (TOFC) service except under conditions approved by the Associate Administrator for Safety, Federal Railroad Administration (FRA). Portable tanks may be transported in container-on-flatcar (COFC) service only under the following conditions:

1. Portable tanks must be equipped to be securely attached to a railcar equipped with an ISO standard COFC basic pedestal system designed for container support and securement;
2. Each railcar used to transport portable tanks must be equipped with a cushioning system that meets the requirements of the Association of American Railroads Specification M-952-82.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

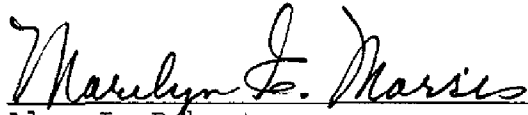
12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

The owner of the tanks covered by this exemption shall provide to the OHMEA a list of all shippers who have shipped under this exemption and a shipping experience report every six months from the effective date of this exemption. The shipping experience report shall contain approximate number of shipments made during the previous six months and any difficulties encountered.

The holder of this exemption, as identified in paragraph 1 above, shall contact the OHMEA immediately after any of the tanks covered by this exemption are sold to another party.

Shippers who ship under the terms of this exemption shall report any incident involving loss of contents of the tanks described herein to the OHMEA as soon as practicable.

Issued at Washington, D.C.:



for Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

November 12, 1996
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FRA, USCG, FHWA
PO: